

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- x **SUMMONS**

NAEEM GRAHAM AND ASHLEY JIMENEZ,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

NYPD POLICE OFFICER RYAN V. BARBA, Shield No.
29699, NYPD POLICE OFFICER JAMES J. MILLS,
Shield No. 1069, AND NYPD POLICE OFFICERS JOHN
DOES NUMBERS ONE THROUGH TEN,Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 5, 2022

Yours, etc.

David Kline

David Kline, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER RYAN V. BARBA, 67th PCT, 2820 Snyder Avenue, Brooklyn, NY 11226
OFFICER JAMES J. MILLS, Intel CIS FIO Program, 1 Police Plaza Path, NY, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

NAEEM GRAHAM AND ASHLEY JIMENEZ,

Plaintiff,

-against-

NYPD POLICE OFFICER RYAN V. BARBA, Shield No.
29699, NYPD POLICE OFFICER JAMES J. MILLS,
Shield No. 1069, AND NYPD POLICE OFFICERS JOHN
DOES NUMBERS ONE THROUGH TEN,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiffs NAEEM GRAHAM and ASHLEY JIMENEZ, by their attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 6, 2021, at approximately 7:04 a.m., Plaintiffs Naeem Graham and Ashley Jimenez, while lawfully in the vicinity of 206 East 34th Street, County of Kings, New York, were subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers. In doing so, defendant Police Officers grabbed and slammed Plaintiff Graham into the wall and then on the floor. Plaintiffs was deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and their constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiffs, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Naeem Graham is a resident of the state of New York.
3. Plaintiff Ashley Jimenez is a resident of the state of New York.

4. NYPD Police Officer Ryan V. Barba, Shield No. 29699 is and was at all times relevant herein an Officer with the New York City Police Department.
5. NYPD Police Officer Ryan V. Barba, Shield No. 29699 is being sued in their individual and official capacity.
6. Currently and at all times relevant herein, NYPD Police Officer Ryan V. Barba, Shield No. 29699 was assigned to the 67th Police Precinct of the NYPD.
7. NYPD Police Officer James J. Mills, Shield No. 1069 is and was at all times relevant herein an Officer with the New York City Police Department.
8. NYPD Police Officer James J. Mills, Shield No. 1069 is being sued in their individual and official capacity.
9. Currently and at all times relevant herein, NYPD Police Officer James J. Mills, Shield No. 1069 was assigned to the Intel CIS FIO Program of the NYPD.
10. NYPD Police Officers John Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
11. NYPD Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.
12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
14. Plaintiffs in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.
15. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on June 22, 2022.

16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.
17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
18. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On August 6, 2021, at approximately 7:04 a.m., Plaintiff was present in the vicinity of 206 East 34th Street, County of Kings, New York, when the defendant Police Officers unlawfully broke into Plaintiff Naeem Graham's home and arrested Plaintiffs without legal justification.
 20. Defendant Officers entered the home by clipping the lock on the side door.
 21. Upon entry, Defendant Officers broke down the bedroom door where Plaintiffs were asleep.
 22. Defendant Officers entered the bedroom, announced Plaintiff's were under arrested and ordered them to hand over their phones.
- Plaintiff Naeem Graham*
23. Plaintiff Graham was in bed with his girlfriend, Plaintiff Jimenez, when Defendant Officers entered the bedroom.
 24. Defendant Officers, without warning or reason, tackled Plaintiff Graham onto the floor.
 25. Defendant Officers then proceeding to grab Plaintiff Graham off the floor, slam him into the wall, before throwing him back onto the floor where they handcuffed him.
 26. After Plaintiffs were placed in handcuffs, Defendant Officers, without probable cause, searched the residence.
 27. In the course of the search, Defendant Officers destroyed and damaged a substantial amount of Plaintiff Graham's property.
 28. Despite Plaintiff Graham's pleas for information, none of his assailants told him that he was being arrested, what he was being arrested for, or where he was being taken.
 29. Defendant Officers grabbed Plaintiff Graham and roughly threw him into a vehicle.

30. Plaintiff Graham was transported to the 67th Precinct where he was fingerprinted, photographed, searched illegally and placed in a holding cell before being transported to Central Bookings.
31. While Plaintiff Graham was in custody, the Defendant Police Officers provided the Kings County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiff committed a crime.
32. Specifically, the Defendant Officers falsely stated to the Kings County District Attorney's Office that Plaintiff Graham was engaged in Criminal Possession of a Weapon in the Second Degree, Criminal Possession of a Firearm, and Criminal Possession of a Weapon in the Fourth Degree.
33. Based on the Defendants false allegations, Plaintiff Graham appeared before a Judge and bail was set.
34. Plaintiff was sent to Rikers Island where he remained for seven days, until the Prosecution could not meet their 180.80 burden and client was released because of no Grand Jury Action or indictment.
35. Plaintiff Graham's case was dismissed and sealed on or about February 25, 2022.
36. At no time relevant herein did Plaintiff Graham commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff Graham of committing a crime or violating the law in any way.
37. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff Graham or from a location that was in Plaintiff Graham's possession, custody, or control.
38. Nevertheless, Plaintiff Graham was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.
39. Some of the police officer defendants observed the violation of Plaintiff Graham's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.
40. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff Graham to sustain physical, psychological and emotional trauma.

Plaintiff Ashley Jimenez

41. Plaintiff Jimenez was asleep at her boyfriend's, Plaintiff Graham, home when she was woken by Defendant Officers breaking down the bedroom door.

42. Plaintiff Jimenez was in her bra and underwear when Defendant Officers entered the room.
43. Plaintiff Jimenez remained in her bra and underwear while Defendant Officers assaulted and unlawfully arrested Plaintiff Graham.
44. Despite Plaintiff Jimenez's pleas for information, none of the Defendant Officers told her what Plaintiff Graham was being arrested for, or where he was being taken.
45. Plaintiff Jimenez was only allowed to dress after the altercation and arrest of Plaintiff Graham.
46. Once Plaintiff Jimenez was dressed, she was also unlawfully handcuffed.
47. After Plaintiffs were placed in handcuffs, Defendant Officers, without probable cause, searched the residence.
48. Plaintiff Jimenez was transported to the 67th Precinct where she was fingerprinted, photographed, searched illegally and placed in a holding cell for approximately 24 hours.
49. While Plaintiff Jimenez was in custody, the Defendant Police Officers provided the Kings County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiff committed a crime.
50. Specifically, the Defendant Officers falsely stated to the Kings County District Attorney's Office that Plaintiff Graham was engaged in Criminal Possession of a Weapon in the Second Degree, Criminal Possession of a Firearm, and Criminal Possession of a Weapon in the Fourth Degree.
51. While Plaintiff Jimenez was at the Precinct, she was interrogated by Defendant Detectives before being transported to Central Bookings.
52. Plaintiff Jimenez remained at Central Bookings for approximately 24 hours before she appeared before a Judge and was released.
53. Plaintiff Jimenez's case was dismissed and sealed on February 25, 2022.
54. As a result of this incident, Plaintiff Jimenez missed work and was suspended without pay for a month.
55. As a result of this arrest, Plaintiff Jimenez is receiving therapy once a week through Valer Health to help her cope with her emotional trauma.
56. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

57. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.
58. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.
59. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.
60. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

61. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
62. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.
63. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
64. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

67. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

68. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

69. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

70. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

71. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

72. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

75. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

76. Plaintiff Graham repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

77. The use of excessive force by defendants by, amongst other things, grabbing and throwing Plaintiff Graham into the wall and onto the floor constituted objectively unreasonable physical

seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

78. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Assault

79. Plaintiff Graham repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
80. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff Graham in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff Graham, that such acts caused apprehension of such contact in the Plaintiff Graham.
81. As a direct and proximate result of such acts, defendants deprived Plaintiff Graham of his rights under the laws of the State of New York.
82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
84. As a result of the aforementioned conduct of defendants, Plaintiff Graham sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Battery

85. Plaintiff Graham repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
86. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner grabbed Plaintiff Graham and threw him against the wall and onto the floor brutally effecting an arrest of Plaintiff Graham without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff Graham and caused such battery.

87. As a direct and proximate result of such acts, defendants deprived Plaintiff Graham of his rights under the laws of the State of New York.
88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
90. As a result of the aforementioned conduct of defendants, Plaintiff Graham sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

91. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
92. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
93. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiff's statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.
94. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
97. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

98. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
99. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
100. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

101. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
102. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.
103. Defendants failed to intervene to prevent the unlawful conduct described herein.
104. As a result of the foregoing, Plaintiff's liberty were restricted for an extended period of time, they was put in fear of their safety, and they were humiliated and subject to other physical constraints.
105. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
108. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

109. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

110. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.
111. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.
112. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.
113. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
114. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.
115. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
116. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
117. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: economic, emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Malicious Prosecution

118. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
119. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.
120. Defendants commenced and continued a criminal proceeding against Plaintiffs.
121. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for each of the charges for which they were prosecuted.
122. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

TWELFTH CAUSE OF ACTION**Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

123. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
124. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
125. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
126. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiff and further causing his detention for approximately 2 days in total.
127. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION**Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

128. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
129. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
130. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
131. The Defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

132. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

133. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

134. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

135. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

136. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

137. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

138. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

139. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining Plaintiff Jimenz and further causing her detention for approximately 2 days, and detaining Plaintiff Graham for approximately 7 days.

140. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

141. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

142. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

143. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.
144. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
145. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
146. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.
147. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of his rights.
148. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

149. Plaintiffs repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
150. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:
- i. freedom from unreasonable search and seizure of her person and property;
 - ii. freedom from arrest without probable cause;
 - iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
 - iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
 - v. freedom from deprivation of liberty without due process of law.
151. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

152. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

153. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

154. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs NAEEM GRAHAM and ASHLEY JIMENEZ demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
August 5, 2022

By: David Kline
David Kline, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER RYAN V. BARBA, 67th PCT, 2820 Snyder Avenue, Brooklyn, NY 11226
OFFICER JAMES J. MILLS, Intel CIS FIO Program, 1 Police Plaza Path, NY, NY 10038

ATTORNEY'S VERIFICATION

DAVID KLINE, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 5, 2022

David Kline
DAVID KLINE